

26TRCV01068 26TRCV01068

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Case Number: 26TRCV01068 Hearing Date: June 25, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department 5

LORETTA ROGERS

Plaintiff,

vs.

ROSECRANS VILLA, INC., et al.;

Defendants.

Case No.:

26TRCV01068

Hearing Date:

June 25, 2026

Time:

8:30 a.m.

[tentative] Order RE:

DEFENDANTS rosecrans villa, inc. and tricia pedroza's demurrer to plaintiff LORETTA ROGERS' COMPLAINT

DEFENDANTS ROSECRANS VILLA, INC. AND TRICIA PEDROZA'S MOTION TO STRIKE PORTIONS OF THE COMPLAINT

PLAINTIFF LORETTA ROGERS' REQUEST FOR LEAVE TO AMEND

MOVING PARTY: Defendants, Rosecrans Villa, Inc. and Tricia Pedroza

RESPONDING PARTY: Plaintiff, Loretta Rogers

Defendants Rosecrans Villa, Inc. and Tricia Pedroza's Demurrer to Plaintiff Loretta Rogers' Complaint is SUSTAINED as to the fourth cause of action and OVERRULED as to the third cause of action pursuant to Code of Civil Procedure section 430.10.

Defendants Rosecrans Villa, Inc. and Tricia Pedroza's Motion to Strike Portions of the Complaint is DENIED pursuant to Code of Civil Procedure section 435.

Plaintiff Loretta Rogers' Request for Leave to Amend is DENIED, unless, during the hearing, Plaintiff can prove that there is a reasonable possibility of addressing the issue discussed in this ruling.

The Court considers the moving papers filed on May 15, 2026, and the opposition briefs filed on June 3, 4, and 8, 2026. To date, no reply briefs have been filed.

BACKGROUND

Factual Background

On March 24, 2026, plaintiff Loretta Rogers ("Plaintiff") filed the Complaint against defendants Rosecrans Villa, Inc., Tricia Pedroza, and DOES 1 through 50. The Complaint includes the following causes of action: (1) Elder Abuse and Neglect (Welf. & Inst. Code § 15600 et seq.); (2) Negligence; (3) Corporate Negligence; (4) Negligent Hiring, Retention, and Supervision; and (5) Violation of Residential Care Facilities for the Elderly Act.

On April 19, 2026, Plaintiff entered into a stipulation with defendants, Rosecrans Villa, Inc. and Tricia Pedroza (collectively, "Defendants"). (Declaration of Nika Chegenizadeh re: Demurrer ("Dem. Chegenizadeh Decl."), ¶ 5, Exh. 2; Declaration of Nika Chegenizadeh re: Motion to Strike ("MTS Chegenizadeh Decl."), ¶ 5, Exh. 2.) This stipulation required Defendants to submit a responsive pleading to the Complaint by May 15, 2026. (Dem. Chegenizadeh Decl., ¶ 5, Exh. 2; MTS Chegenizadeh Decl., ¶ 5, Exh. 2.)

On May 6, 2026, Defendants' counsel emailed Plaintiff's counsel to discuss the purported deficiencies in the Complaint. (Dem. Chegenizadeh Decl., ¶ 6, Exh. 3; MTS Chegenizadeh Decl., ¶ 6, Exh. 3.) However, Plaintiff's counsel was not available to address these deficiencies until May 11, 2026. (Dem. Chegenizadeh Decl., ¶ 7, Exh. 4; MTS Chegenizadeh Decl., ¶ 7, Exh. 4.)

On May 8, 2026, Defendants' counsel filed a declaration of demurring party to seek an automatic extension for filing a responsive pleading. (Dem. Chegenizadeh Decl., ¶ 8, Exh. 5; MTS Chegenizadeh Decl., ¶ 8, Exh. 5.)

On May 11, 2026, the parties' counsel convened to discuss the alleged deficiencies in the Complaint, yet they were unable to reach a resolution. (Dem. Chegenizadeh Decl., ¶ 9; MTS Chegenizadeh Decl., ¶ 9.) This lack of resolution has necessitated the filing of the present demurrer and motion to strike.

Procedural Background

On May 15, 2026, Defendants filed the demurrer and motion to strike.

On June 3, 2026, Plaintiff filed an opposition brief to the motion to strike. On June 4, 2026, Plaintiff filed an opposition brief to the demurrer. On June 8, 2026, Plaintiff filed an amended opposition brief to the demurrer.

To date, no reply briefs have been filed.

MEET AND CONFER REQUIREMENT

Before filing a demurrer or motion to strike, the moving party is required to meet and confer in person, by telephone, or via video conference with the party that filed the pleading that is subject to the motion to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a), 435.5, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41, subd. (a)(2), 435.5, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a)(3).) A determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a demurrer, or to grant or deny a motion to strike. (Code Civil Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

On May 6, 2026, Defendants' counsel emailed Plaintiff's counsel to discuss the purported deficiencies in the Complaint. (Dem. Chegenizadeh Decl., ¶ 6, Exh. 3; MTS Chegenizadeh Decl., ¶ 6, Exh. 3.) However, Plaintiff's counsel was not available to address these deficiencies until May 11, 2026. (Dem. Chegenizadeh Decl., ¶ 7, Exh. 4; MTS Chegenizadeh Decl., ¶ 7, Exh. 4.)

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On May 11, 2026, the parties' counsel convened to discuss the alleged deficiencies in the Complaint, yet they were unable to reach a resolution. (Dem. Chegenizadeh Decl., ¶ 9; MTS Chegenizadeh Decl., ¶ 9.) This lack of resolution has necessitated the filing of the present demurrer and motion to strike.

Accordingly, the Court finds that Defendants sufficiently met and conferred with Plaintiff before filing this demurrer.

DEMURRER

Legal Standard

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Discussion

Third Cause of Action – Corporate Negligence

Defendants demur to Plaintiff's third cause of action for corporate negligence on the following grounds: (1) Plaintiff fails to assert factual allegations sufficient to demonstrate proximate or legal cause, (2) Plaintiff does not include factual allegations showing any injury; and (3) Plaintiff has not presented facts to show that the corporate defendant authorized the actions of its employee or agent. (Dem., pp. 6:22-8:4.)

"The essential elements of actionable negligence include: (1) a defendant's legal duty to use due care; (2) a breach of that duty; and (3) the breach as the proximate or legal cause of the resulting injury." (*Elam v. College Park Hospital* (1982) 132 Cal.App.3d 332, 338.)

"Under the authorities, it is sufficient to allege that an act was negligently done by defendant, and that it caused damage to plaintiff. [Citations.] The rule was early announced in this state in *Stephenson v. Southern Pacific Co.* (1894), 102 Cal. 143, 147-148 [34 P. 618, 36 P. 407] as follows: 'In adopting what is known as the code system of pleading, courts in most of the states have excepted from the general rule, requiring a complaint to state the facts constituting the cause of action in ordinary and concise language, cases founded upon negligence; or rather, they have so far modified the rule as to permit the plaintiff to state the negligence in general terms, without stating the facts constituting such negligence. ... As a result of the application of these principles to code pleading in cases of negligence and to others of kindred character, it is held in this state, and in nearly all of the United States, that it is sufficient to allege the negligence in general terms, specifying, however, the particular act alleged to have been negligently done.' " (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 154-155 (*Rannard*).)

Here, Plaintiff presents factual allegations that effectively demonstrate both causation and injury. Plaintiff contends that Defendants' failure to (1) maintain adequate staffing levels, (2) train employees in mental health supervision, (3) implement suicide prevention protocols, (4) respond to regulatory complaints, and (5) provide adequate supervision systems were substantial factors in causing Plaintiff's injuries. (Compl., ¶¶ 28, 33, 36.) These injuries include "severe emotional distress, chronic physical deterioration, psychological decline, and loss of dignity[.]" (Compl., ¶ 6.) Plaintiff specifically identifies the conduct that allegedly resulted in these injuries, which meets the requirements set forth in *Rannard*.

In their moving papers, Defendants reference *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, *Williams v. Wraxall* (1995) 33 Cal.App.4th 120, and *Saelzler v. Advanced Group 400* (2021) 25 Cal.4th 763 to claim that Plaintiff must meet a heightened pleading standard. (Dem., pp. 6:28-7:4, 18-21.) However, none of these cases involve demurrers, thereby rendering them inapplicable to the matter currently before the Court.

In response to Defendants' assertion that "Plaintiff fails to allege any facts or any indication that the corporate defendant of this case authorized its employee's or agent's actions," the Court determines that this argument lacks merit. (Dem., pp. 7:28-8:2.) Plaintiff is under no obligation to demonstrate such authorization.

Defendants reference Presbyterian Camp & Conference Centers, Inc. v. Superior Court (2021) 12 Cal.5th 493, 515 (Presbyterian) to support their claim that Plaintiff must "be able to demonstrate authorization by the corporation" in order to "prove that a corporation is directly liable for the actions of its employees or agents[.]" (Dem., p. 7:26-27.) However, Plaintiff is pursuing the cause of action directly against the corporate defendant, Rosecrans Villa, Inc., based on its "own administrative and policy-level failures[.]" (Amend. Opp., p. 11:2-3.) The Presbyterian case only required the plaintiff to show authorization under the doctrine of respondeat superior. (Presbyterian, supra, 12 Cal.5th at p. 515.) Since Plaintiff is bringing this action directly against the corporation and is not relying on respondeat superior, there is no need to demonstrate authorization by the corporation.

Accordingly, Defendants' demurrer to the third cause of action for corporate negligence is **OVERRULED**.

Fourth Cause of Action – Negligent Hiring, Retention, and Supervision

Defendants demur to Plaintiff's fourth cause of action for negligent hiring, retention, and supervision on the following grounds: (1) "Plaintiff severely lacks any factual allegations regarding Defendants' employees to be of incompetent or unfit character in the scope of their employment[.]" (2) "Plaintiff fails to plead factual allegations regarding Defendants' knowledge that employees were incompetent or unfit[.]" and (3) "Plaintiff fails to sufficiently allege how Defendants' employees caused Plaintiff's injuries." (Dem., pp. 9:3-4, 26-27, 10:23-24.)

"California case law recognizes the theory that an employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. [Citation.] Liability is based upon the facts that the employer knew or should have known that [hiring, supervising, or retaining] the employee created a particular risk or hazard and that particular harm materializes. [Citation.]" (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054, internal citations omitted.)

"Under the authorities, it is sufficient to allege that an act was negligently done by defendant, and that it caused damage to plaintiff. [Citations.] The rule was early announced in this state in Stephenson v. Southern Pacific Co. (1894), 102 Cal. 143, 147-148 [34 P. 618, 36 P. 407] as follows: 'In adopting what is known as the code system of pleading, courts in most of the states have excepted from the general rule, requiring a complaint to state the facts constituting the cause of action in ordinary and concise language, cases founded upon negligence; or rather, they have so far modified the rule as to permit the plaintiff to state the negligence in general terms, without stating the facts constituting such negligence. ... As a result of the application of these principles to code pleading in cases of negligence and to others of kindred character, it is held in this state, and in nearly all of the United States, that it is sufficient to allege the negligence in general terms, specifying, however, the particular act alleged to have been negligently done.' " (Rannard, supra, 26 Cal.2d 149 at pp. 154-155.)

Plaintiff contends that "Defendants knew or should have known staff were untrained and unfit." (Compl., ¶ 39) Plaintiff argues that Defendants had this knowledge due to "repeated complaints to the Long-Term Care Ombudsman, Adult Protective Services, and the Community Care Licensing Division[.]" which purportedly "plac[ed] Defendants on repeated notice of dangerous conditions." (Compl., ¶¶ 4, 15.) However, none of these allegations demonstrate that Defendants were aware of any unfit employees; rather, they only highlight dangerous or unfit conditions.

Accordingly, Defendants' demurrer to the fourth cause of action for negligent hiring, retention, and supervision is **SUSTAINED** with Leave to Amend.

MOTION TO STRIKE

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b), emphasis added.) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Discussion

Defendants seek to strike any references to punitive damages contained within paragraphs 44 to 53 and damages (f) of the Complaint. (MTS, pp. 2:6-3:4.) Defendants contend that (1) “the causes of action does not specifically identify which alleged acts were malicious, fraudulent, or oppressive on the part of Defendants[;]” and (2) the “allegations against Defendants are unsupported by sufficient facts, and, frankly, cannot reach the threshold level of despicability found in cases in which punitive damages were found to be proper.” (MTS, p. 8:20-21, 23-25.)

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) A motion to strike punitive damages is properly granted when a plaintiff does not state a prima facie claim for punitive damages. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.) “The [] language must be read not in isolation, but in the context of the facts alleged in the rest of petitioner’s complaint.” (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.)

“Malice” is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) “Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.” [Citation.]” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210.)

“As amended to include [despicable], the [Civil Code section 3294] plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) The statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (*Ibid.*) Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having the character of outrage frequently associated with crime.’” (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.) Further, “[t]here must be evidence that defendant acted with knowledge of the probable dangerous consequences to plaintiff’s interests and deliberately failed to avoid these consequences.” (*Flyer’s Body Shop Profit Sharing Plan v. Ticor Title Ins. Co.* (1986) 185 Cal.App.3d 1149, 1155.)

“Oppression” means “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).)

“Fraud” means “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).)

Here, Plaintiff is not obligated to “specifically identify which alleged acts were malicious, fraudulent, or oppressive on the part of Defendants.” (MTS, p. 8:20-21.) Rather, ad, the Complaint should be evaluated in its entirety. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.) Therein, oppression is sufficiently alleged.

Plaintiff contends that Defendants permitted her to (1) remain unsupervised despite their awareness of her suicide risk, (2) failed to implement or enforce any safety or monitoring plan, (3) failed to implement adequate supervision, monitoring, and intervention protocols, (4) ignored escalating psychiatric symptoms, (5) failed to provide timely psychiatric care, (6) failed to respond to psychiatric distress, maintained inadequate staffing levels, and (7) failed to comply with mandatory reporting laws under California Welfare and Institutions Code section 15630. (Compl., ¶¶ 16, 24.)

Moreover, Plaintiff contends that Defendants acted in this manner despite “assum[ing] custodial care and responsibility for meeting Plaintiff’s daily, basic needs, including supervision, safety, protection from self-harm, and access to necessary medical and mental health care.” (FAC, ¶ 2.) As a result of Defendants’ alleged actions, “Plaintiff suffered severe emotional distress, chronic physical deterioration, psychological decline, and loss of dignity, and continues to recover from the harm caused.” (Compl., ¶ 6.)

The Court finds that the allegations presented are sufficient to indicate despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. Defendants allegedly failed to care for Plaintiff despite knowing her needs, which led to her physical and mental deterioration.

As such, the Defendants’ motion to strike is DENIED.

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ORDERS

Defendants Rosecrans Villa, Inc. and Tricia Pedroza’s Demurrer to Plaintiff Loretta Rogers’ Complaint is SUSTAINED with respect to the fourth cause of action, with twenty (20) days Leave to Amend, and

OVERRULED with respect to the third cause of action.

Defendants Motion to Strike Portions of the Complaint is DENIED pursuant to Code of Civil Procedure section 435.

Defendants are ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: June 25, 2026

Tamara Hall

Judge of the Superior Court